

HOUSE No. 850

The Commonwealth of Massachusetts

PRESENTED BY:

David Henry Argosky LeBoeuf

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to honest online political advertisement disclosure and election interference.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>1/6/2025</i>

HOUSE No. 850

By Representative LeBoeuf of Worcester, a petition (accompanied by bill, House, No. 850) of David Henry Argosky LeBoeuf relative to electioneering communication expenditures. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 704 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to honest online political advertisement disclosure and election interference.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The first paragraph of section 18F of chapter 55 of the General Laws is
2 hereby amended by striking out the first sentence and inserting in place thereof the following
3 sentence:-

4 Every individual, group, association, corporation, labor union or other entity not defined
5 as a political committee who makes an electioneering communication expenditure in an
6 aggregate amount exceeding \$250 during a calendar year shall electronically file with the
7 director, within 7 days after making the expenditure, a report stating the name and address of the
8 individual, group, association, corporation, labor union or other entity making the electioneering
9 communication, the name of any candidate clearly identified in the communication, the total
10 amount or value of the communication, the name and address of the vendor to whom the

11 payments were made and the purpose and date of the expenditure; provided, that no individual,
12 group, association, corporation, labor union or other entity not defined as a political committee
13 shall expend funds except funds of a United States Citizen for the purpose of an electioneering
14 communication expenditure made in relation to internet advertising; provided, that if
15 electioneering communication expenditure was made in relation to internet advertising, the
16 report shall also include the advertisement as delivered to the vendor, the demographic
17 information of the advertising target and the 5 persons or entities or if fewer than 5 persons or
18 entities, all persons or entities that made the largest contributions to that entity, regardless of the
19 purpose for which the funds were given; provided further, that if an internet advertisement
20 electioneering communication is removed from a website, the individual, group, association,
21 corporation, labor union or other entity not defined as a political committee shall provide an
22 electronic addendum to the report stating the reason for the removal provided by the website; and
23 provided further, that if electioneering communication expenditure was made in relation to
24 internet advertising, the report shall certify under the pains and penalties of perjury that the
25 expenditure was paid for exclusively by United States citizens.

26 SECTION 2. Chapter 55 of the General Laws is hereby amended by inserting after
27 section 18G the following section:-

28 Section 18H. The director shall establish an online public archive for internet advertising
29 electioneering communications. The archive shall make available every electioneering
30 communication that is an internet advertisement, the demographic information of the advertising
31 target and the 5 persons or entities or if fewer than 5 persons or entities, all persons or entities
32 that made the largest contributions to that entity, regardless of the purpose for which the funds

33 were given. If an internet advertisement electioneering communication was removed from a
34 website, the archive shall also make available the reason for removal provided by the website.

35 The director shall solicit public comment and promulgate rules and regulations regarding
36 internet advertising electioneering communications on online platforms.